

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 24, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MICHAEL CEREMELLO v CITY OF DIXON
Case No. CU25-03432**

Court Trial

TENTATIVE RULING:

This matter will be decided on the briefs, file and oral argument. Parties to appear for oral argument. Remote appearances are authorized.

On September 22, 2026, the parties filed a stipulation as to facts. Other than filings directly ordered by the court, no other filings related to this decision shall be made without leave of court. The court appreciates the efforts of the parties to simplify this matter but the parties must also appreciate filing deadlines are also for the benefit of the court.

Please review the 2025 amendment to Revenue and Taxation Code section 7265.

Additionally, CITY shall supplement the record with the actual December 12, 2024, communication from the California Department of Tax and Fee Administration ("CDTFA"), as presumably such communication was in writing.

The court believes an interpretation of the 2024 version of Revenue and Taxation Code section 7265 to require CITY action to certify the election results and to adopt an ordinance no later than December 12, 2024, was erroneous and not mandated by the terms of the 2024 statute. Such an interpretation is additionally unreasonable in light of the extremely narrow time frame between an election, canvass and certification of election results (in this case 6 working days). The ability of a public entity to certify an

election approving a local sales tax increase and to adopt an ordinance to implement the results in such a short time frame would preclude a city from taking action at its regular meeting (unless one was already serendipitously scheduled) and would necessitate a special meeting. In this case, the court understands the CITY's regular meeting was on December 3, 2024.

The conclusion that an interpretation requiring city action by December 12 was in error is further supported by the 2025 amendment to Section 7265.

Whether a violation is likely to be continuous or ongoing is one of the issues in this suit.

CANNOVA vs. PACIFIC GAS AND ELECTRIC COMPANY, et al.
Case No. CU25-11883

PACIFIC GAS AND ELECTRIC COMPANY'S NOTICE OF MOTION AND MOTION TO STRIKE PUNITIVE DAMAGES

TENTATIVE RULING

This motion to strike seeks to strike allegations in a pleading that is not yet before the court.

In early February, Defendant filed an answer to the original complaint filed by Plaintiff.

A plaintiff can amend without leave of court only if no answer has been filed, or if a demurrer is filed, before the deadline for opposition to the demurrer. C.C.P. §472(a).

The court is aware that during the brief period of time this case had been removed to federal court, the parties filed a stipulation, approved to some degree by the federal court magistrate, to allow Plaintiff to file a first amended complaint which was purportedly attached to the stipulation, as part of the process of returning the case to state court. While a copy of that stipulation and order is in the court's electronic file, no copy of the proposed first amended complaint is attached to it. Furthermore, from Plaintiff's opposition, it appears that the proposed first amended complaint was not filed, either in the federal court, nor in the present state court; and that Plaintiff instead, after this motion to strike was filed, unsuccessfully attempted to file a different version of a first amended complaint than had been attached to the stipulation.

Until Plaintiff obtains leave from this state court to file a first amended complaint, the operative pleading is the original complaint, which Defendant has already answered, and this motion to strike allegations in a first amended complaint is premature.

The court therefore declines to rule on this motion.

This renders moot Plaintiff's arguments in the opposition that the notice of motion failed to identify the date, time and place of hearing for this motion to strike, and misidentified the paragraphs containing punitive damage allegations Defendant was seeking to strike.